

STATE OF NEW YORK

5454--A

2025-2026 Regular Sessions

IN SENATE

February 21, 2025

Introduced by Sens. COMRIE, JACKSON, MAY -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend public health law, in relation to requiring cytomegalovirus screening for every newborn

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (h) of subdivision 1 of section 2500-a of the
2 public health law, as amended by chapter 730 of the laws of 2021, is
3 amended to read as follows:

4 (h) [~~With regard to any newborn infant who is identified as, or~~
5 ~~suspected of, having a hearing impairment as a result of a screening~~
6 ~~conducted pursuant to section twenty five hundred g of this title,~~
7 Cytomegalovirus using a nucleic acid-based test, such as a dried blood-
8 spot, or a urine polymerase chain reaction (PCR) test [~~for cytomegalovi-~~
9 ~~rus, unless the parent of the infant objects thereto~~]; provided that if
10 the commissioner determines that another test for cytomegalovirus is
11 diagnostically equivalent to or better than [~~the~~] a nucleic acid-based
12 test or a urine polymerase chain reaction test, the commissioner may, by
13 regulation under this section, allow or require the use of that other
14 test.

15 § 2. This act shall take effect on the one hundred eightieth day after
16 it shall have become a law. Effective immediately, the addition, amend-
17 ment and/or repeal of any rule or regulation necessary for the implemen-
18 tation of this act on its effective date are authorized to be made and
19 completed on or before such effective date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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